

		prior to reconstructing/replacing the sidewalk slab at the subject premises, as required under the DVBE Agreement. The negligent work of DVBE breached the agreement and thereby caused the ongoing damage to the sidewalk whereby it continued to lift, which is was specifically hired to prevent.” (SACC ¶ 78.) The Agreement itself states is between the “City of Fullerton” and “DVBE ASAP INC.” (Ex. A.) The City alleges multiple times in the SACC that the Agreement is between itself and DVBE: - “Agreement between CITY and DVBE” (SACC ¶ 3.) - “The CITY alleges that it entered into an Agreement with DVBE on or about May 1, 2015” (SACC ¶ 26.) - “Under the CITY’s agreement with DVBE, DVBE was responsible for” (SACC ¶ 27.) As the City has not alleged sufficient facts demonstrating USIC was also a party to the Agreement, the Court sustains USIC’s demurrer to the third cause of action on this ground.
12.	JOHNSON VS. LUK 2026-01545106	DEMURRER TO COMPLAINT DEMURRER TO COMPLAINT MOTION TO STRIKE - ANTI SLAPP MOTION TO STRIKE - ANTI SLAPP MOTION TO STRIKE As to all 5 motions there are no tentative rulings. Counsel to appear.
13.	ALARID VS. CAMARILLO 2024-01377164	MOTION TO COMPEL RESPONSE TO REQUESTS FOR ADMISSIONS SET ONE Plaintiff Dolores Alarid’s Motion to Compel Defendant Petra Camarillo’s Further Responses to Requests for Admission, Set One (RFAs) is DENIED. Plaintiff seeks further responses to 42 RFAs related to the subject collision. Defendant’s initial responses consist of objections with the statement, “Responding Party is unable to admit or deny this Request at this time.”